

English common law (customary law based on precedent) is **defined in a treatise** commissioned by King Henry II from his chief minister, Ranulf de Glanvill.



1187–1189

Trials by ordeal are **abolished** in England by King Henry III.



1219

In his *Summa Theologica* (*Theological Treatise*), Thomas Aquinas says **human law** may be **unjust** if it conflicts with **eternal, divine, or natural law**.



1265–1274

1166



The Assize of Clarendon extends the power of the English Crown with **assize courts** and makes use of **trial by ordeal** and **jurors** in trial procedures.

1215



English King John signs **Magna Carta**, a charter of rights affirming that the monarch is **not above the law**.

1225



King Henry III reissues England's **Magna Carta**, which binds the **king to observe the law** and **protects all men** from royal abuse of power.

13TH–15TH CENTURY



A customary **law among merchants**, the *Lex Mercatoria*, evolves as a form of **self-regulation of international trade**.

is “the law common to all nations.” Influenced by Aristotle, Italian theologian Thomas Aquinas examined the concept of law itself, especially the differences between the ecclesiastical laws of the Church and civil law, which was not concerned with Church affairs. He identified different types of law, from God-given divine and eternal laws, to the natural law that exists universally, to laws devised by humans. His view that all types of law should conform to overarching natural law influenced legal thought for centuries to come.

The law and the state

England’s legal system was an example of the important changes that took place in the medieval period. Until the Norman invasion of 1066, Saxon rulers had enforced a

hybrid of Viking and Christian laws, with summary justice and harsh punishments. The new Norman king, William the Conqueror, took control of land ownership in a new, feudal system. To do this, he made a detailed inventory of his realm in the Domesday Book—a record that would later supply precedents in property law cases.

A significant innovation in the 12th century in England was the introduction of assize courts. These were convened from time to time in towns and cities, presided over by traveling judges. Assizes wrested control of the law from the Church and bolstered the idea of a common law. They also required local jurors to give evidence and, after trial by ordeal fell into disuse, to judge guilt in a precursor of the jury system. Another landmark in English law

came in 1215, when the barons negotiated a deal with King John, recorded in a document later called Magna Carta. The king agreed that he would no longer act outside the law. The document also promised that every “free man” should have access to the law through traveling assizes and could not be arrested or punished except by established legal procedure.

While medieval Europe largely functioned under a dual system of civil and canon law, merchants had a greater influence on European society from the 13th century onward, instigating new commercial laws and even international agreements. These would prove vital to the further development of trade between nations and maintained their relevance until the modern era. ■